

Court No. - 30

Case :- WRIT - C No. - 11135 of 2020

Petitioner :- Ghirrau Lal

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Brijesh Chandra Naik

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Vivek Varma,J.

Heard Sri Brijesh Chandra Naik, learned counsel for petitioner, Sri Mahboob Ahmad, learned counsel for respondent no.2 and 3 and the learned Standing Counsel.

Petitioner has felt aggrieved by the inaction of respondent in not deciding the representation made against demand notice issued on 1.8.2019. It is submitted by Sri Brijesh Chandra Naik, Advocate that the petitioner replied to the said demand notice on 1.8.2019 and denied all the allegation.

However, it appears that without making any inquiry, the petitioner was directed to deposit the entire amount on 14.1.2020 and electric connection was disconnected by respondent no.3 just before pandemic. A fresh representation came to be made by petitioner on 17.3.2020 but the same has yet not been decided.

On advance notice, Sri Mahboob Ahmad, learned counsel for respondent no. 2 and 3 submits that the reply cannot be considered by the respondents as it is not in the prescribed format.

May that as it may be, having considered the pandemic condition in the country we direct the petitioner to file reply to the notice afresh in the format in which it is supposed to be

filed as per the Electricity Supply Code applicable in the State of U.P. The Respondent shall decide the same as expeditiously as possible. This petition may also be annexed with the said reply, which may be filed as expeditiously as possible not later than 27.7.2020. It is hoped that the respondent will take decision in accordance with law after considering the objection raised by the petitioner and if they find that there is some merit in the objection raised, they may take a decision not later than 28.8.2020.

At this stage, the petitioner undertakes to deposit 50% of the impugned demanded amount with the respondent subject to rights and contention of both the parties. If the said amount is deposited, we hope the respondent will take sympathetic approach during this pandemic and provisionally reconnect electric connection so that the people are not deprived of RO water and petitioner does not suffer.

The original sealing certificate should be annexed with the fresh reply.

Petition is disposed of.

Order Date :- 10.7.2020
Mukesh